

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: June 3, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

Zoom Meeting Passcode: 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:00 a.m. CALENDAR

LINE

3

**IN RE THE MATTER OF THE ZENA P. MILLER 1997 REVOCABLE TRUST,
AS AMENDED AND RESTATED
PR24-00444**

Petition for Suspension of Trustee Janet Miller or in the Alternative Removal of Trustee and to Compel an Accounting; and to Appoint an Interim Trustee

Pro Se Objection and Response to the “Petition for Suspension of Trustee Janet Miller or In The Alternative Removal Of Trustee and To Compel an Accounting; and To Appoint an Interim Trustee” (filed by Gregory Paul Miller)

Pro Se Objection and Response to the “Petition for Suspension of Trustee Janet Miller or In the Alternative Removal of the Trustee and to Compel an Accounting; And To Appoint An Interim Trustee” (filed by Nina M. Shea)

Pro Se Objection and Response to the “Petition for Suspension of Trustee Janet Miller or In the Alternative Removal of the Trustee and to Compel an Accounting; And To Appoint An Interim Trustee” (filed by Janet M. Miller)

Verified Petition for Order Confirming Interpretation of Trust Terms and Instructing Trustee to Proceed with Sale Of Real Property Commonly Known as 1761 Stuart Court, Benicia, California, Pursuant Thereto [Probate Code §§ 17200(a),(b)(1), (b)(3) and (b)(6)] (filed by Nina Miller Shea)

Status Review Hearing

PREGRANT ORDER

This matter was continued from February 6, 2025, May 8, 2025, July 10, 2025 and September 3, 2025, November 12, 2025, February 26, 2026, and March 18, 2026 to allow the parties to attend additional court-sponsored mediation on April 30, 2026. The court has reviewed the Notice of Withdrawal of Objections filed by Gregory Miller as to the original petition.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of additional mediation.

As to the Verified Petition filed Nina Miller Shea:

The proof of service filed on January 28, 2026 is missing required information and shows that service was done less than 30 days before the hearing as required by Probate Code section 17203. The court continued the matter so that proper notice could be given. There is no proof of service on file with the court showing this occurred.

9:01a.m. CALENDAR

LINE

4

ROBLES v. FCA US LLC
CU25-03052

Motion for Attorney's Fees filed by Plaintiff

TENTATIVE RULING

Plaintiff's motion for attorney's fees is granted in part.

Applying the lodestar method, the court finds that a reasonable rate for the work of the attorneys in this case in Solano County was \$450.00 an hour and a reasonable rate for the work of the paralegal (who did sometimes bill for clerical work) was \$150.00 an hour. Based on these hourly rates, the court reduces the amount plaintiff requests to \$25,185.00. The court adds another \$1,800.00 in fees for the further work expected to be done on this motion (four hours at an hourly rate of \$450.00).

The court finds that the amount of time spent on the tasks performed, as described in Exhibit 8 to the declaration of Vanessa Oliva, was not excessive, and therefore the court does not reduce the amount plaintiff requests based on time spent. Nor does the court reduce the amount plaintiff requests due to other matters raised by defendant, such as the fees incurred on plaintiff's motion to compel discovery and motion to compel the PMQ deposition. Plaintiff is entitled to recover for the fees incurred on these matters.

In view of the above, the total amount of attorney's fees awarded is \$26,985.00. Plaintiff is also entitled to recover the uncontested costs of \$1,986.20 claimed in its memorandum of costs.

9:30 a.m. CALENDAR

IN THE MATTER OF THE LUCERO VALDEZ SETTLEMENT TRUST
FPR046076

LINE

6

Petition to Approve Fifth Account and Report of Co-Trustees from 03/01/2024 through 02/28/2026, to Increase Bond, to Confirm Co-Trustees' Fees, and to Approve Attorneys' Fees [GC 70657.5(a)(1), 70652(d); PC 1060, 2620, and 17200(b)(5)]

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed. The court orders that the amount of the bond be increased to \$126,000.00.

LINE

7

**IN RE THE NICHOLAS BROWN IRREVOCABLE SPECIAL NEEDS TRUST
FPR049396**

Second and Current Account and Report of Trustee; Petition to Settle Account; Request for Continued Authority to Expend Trust Assets for a Part-Time Provider of Care, Education, and Transportation Services for the Benefit of the Beneficiary; Petition for Approval of Interim Trustee Fees; Petition for Continued Payment of Interim Trustee Fees; and Petition to Fix and Allow Attorney's Fees [PC §§ 1060, 2620, 3600 and 17200(b)(5)]

Supplement to the Second and Current Account and Report of Trustee; Petition to Settle Account; Request for Continued Authority to Expend Trust Assets for a Part-Time Provider of Care, Education, and Transportation Services for the Benefit of the Beneficiary; Petition for Approval of Interim Trustee Fees; Petition for Continued Payment of Interim Trustee Fees; Petition to Fix and Allow Attorney's Fees; and, Petition for Interim Attorney's Fees

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

The Second Supplement requests that the court approve a monthly payment of attorney fees of \$500.00 per month for a maximum of 24 months. The court will not grant this request without a specific showing of the need for \$500.00 per month for 24 months which totals \$12,000.00.

LINE

8

IN RE THE ESTATE OF TERRY LEE PARSLEY, DECEASED
FPR051937

Petition for Termination of Further Proceedings and Discharge of Personal Representative Due to No Asset Estate (Probate Code § 12251)

PREGRANT ORDER

This matter was continued from February 23, 2026 and April 9, 2026 to allow the petitioner to address an issue with the petition. The court has reviewed the second supplement filed May 20, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed. The court finds that there are no assets in the estate and the creditor claims cannot be paid.

LINE

9

IN RE THE ESTATE OF BARCIA ANN WILLIAMS, DECEASED
PR24-00132

(Second) Status Report and Petition for Continuance of Estate Administration (Prob. §12200 et seq.)

PREGRANT ORDER

The second status report filed April 17, 2026 is approved. The court orders that the estate's administration shall continue through October 15, 2026. Unless a petition for final distribution is on file by October 15, 2026, a third status report shall be filed by October 15, 2026.

LINE

10

IN RE THE ESTATE OF JESSIE T. SANCHEZ, JR., DECEASED
PR24-01168

First Amended Petition for (1) Financial Elder Abuse; (2) Undue Influence; (3) Fraud; (4) Constructive Fraud; (5) Breach Of Fiduciary Duty; (6) Deceit; (7) Conversion; and (8) Constructive Trust [Probate Code § 17200, 850, and 859]

PREGRANT ORDER

This matter was continued from January 28, 2026 and March 25, 2026 to allow the parties to finalize the settlement agreement reached in mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall. Counsel shall report on the status of the settlement agreement.

LINE

11

**IN RE THE ESTATE OF JOSE MARIO RIVERA VARGAS, DECEASED
PR25-00169**

First and Final Account and Report of Administrator, and Petition for its Settlement and for Final Distribution and Closure, Exhibits and Verification

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

The Inventory filed October 22, 2025 listed \$379,307.00 as personal property/bank investment without the required description. The petitioner shall explain which bank holds the assets. Additionally, if the value includes stocks, furniture, or other property, those items must be valued by the probate referee.

LINE

12

**IN THE MATTER OF SHARON K. BERNTSEN REVOCABLE TRUST DATED
APRIL 3, 2025
PR25-00635**

Petition to Invalidate Trust; For Financial Elder Abuse; and Removal of Trustee

Objection and Response of Ravindra Bhatia to Petition By Beneficiary to Invalidate Trust; For Financial Elder Abuse; and Removal of Trustee

PREGRANT ORDER

This matter was continued from November 14, 2025 to allow the parties to participate in mediation. The court advised counsel that if the matter was not resolved at mediation, the court expected separately filed case management conference statements in accordance with the rules of court. No case management statements have been filed.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

The outcome of mediation.

LINE

13

**IN THE MATTER OF THE GEORGE F. RERICH AND ALICE L. REICH
FAMILY TRUST, DATED SEPTEMBER 5, 2001
PR25-00806**

Petition to Compel Accounting; For Breach of Fiduciary Duty Under Probate Code §17200, For Self-Dealing, and For Removal of Co-Trustees (On Cal. June 17, 2026)

Petition For Settlement Of Account (Probate Code §17200(b)(5))

PREGRANT ORDER

The court on its own motion continues this hearing to June 17, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

There is no Proof of Service showing that the accounting petition has been served on all interested parties.

LINE

14

**IN RE THE ESTATE OF BRENDA S. CASSANOVA, DECEASED
PR26-00080**

Amended Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from April 6, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the decedent's will lodged on May 12, 2026, and the amended petition and the Duties filed May 28, 2026 which did not resolve all of the issues.

The court on its own motion continues this hearing to July 30, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Amended Petition, item 6: As the decedent was not survived by a spouse or issue, the first box that applies must be marked and the relevant persons listed in item 8.
2. The Vacaville Reporter is not a newspaper of general circulation for Fairfield. (See Prob. Code § 8120 et seq.) Publication must be done in a newspaper of general circulation for Fairfield.
3. An amended petition was filed on May 28, 2026. An amended pleading requires the same notice of hearing as the pleading it amends. (Cal. Rules of Court, Rule 7.53.) There is no Proof of Service on file showing that the amended petition has been served.

LINE

15

**IN THE MATTER OF THE LOUIS G. CARNSER JR. AND CAROL J. CARNSER
TRUST
PR26-00237**

Petition to Remove Candace Moon as Trustee of Trust and Replace With Court-Appointed Fiduciary; Issuance of Immediate Preliminary Distribution to Beneficiaries; Request for First Accounting; and Deny Trustee from Using Trust Assets to Defend Litigation

[Cal. Prob. Code, §§ 15642; 16000; 16061; 16420; 17200(b)(10) and (12); 17206]

PREGRANT ORDER

The court finds all notices have been given as required by law. The unopposed petition is granted as prayed.

LINE

16

IN RE THE ESTATE OF XUYEN NGUYEN ENGLISH, DECEASED
PR26-03096

Petition to Determine Succession to Primary Residence

PREGRANT ORDER

The court on its own motion continues this hearing to July 20, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The original will is not on file. (Probate Code § 8200.)
 2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 13153.
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